

2014 WL 4801851 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Angela CARR, Plaintiff,

v.

THE CITY OF NEW YORK; Nypd P.O. **Marko Sikiric**, Tax # 946251; Nypd EPC Daniel Irving, Tax # 319363; Nypd EPC Kevin Colvin, Tax #933703 and Nypd P.O. John Does # 1-5; the individual defendant(s) sued individually and in their official capacities, Defendants.

No. 0508449-2014.
September 15, 2014.

Jury Trial Demanded

Summons

[Martin E. Adams](#), Esq., Adams & Commmissiong LLP, 65 Broadway 715, New York, New York 10006, 212-430-6590, for plaintiff.

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY SEPTEMBER 15, 2014

COMPLAINT

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of her rights secured by the laws of the State of New York; New York State Constitution; [42 U.S.C. §§ 1983](#) and [1988](#); and the Fourth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from incidents that arose on or about June 18, 2013. During those incidents, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unlawful search and seizure, forgery, trespass to personal property, implementation and continuation of an unlawful municipal policy, practice, and custom, and respondeat superior liability. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon Defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

5. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

6. Plaintiff Angela Carr, is an African-American female, who is a resident of the State of New York, Kings County.

7. At all times alleged herein, Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times alleged herein, defendants P.O. **Marko Sikiric**, Tax # 946251; EPC Daniel Irving, Tax # 319363; Sgt. Kevin Colvin, Tax # 933703 were New York City Police Officers employed with the 77th Precinct, the 90th Precinct, or Patrol Bureau Brooklyn North located in Kings County, New York or other as yet unknown .NYPD assignment, who violated plaintiff's rights as described herein.

9. The individual defendants are sued in their individual and official capacities.

10. At all times alleged herein, defendants P.O. JOHN DOES # 1-5 were New York City Police Officers employed with the 77th Precinct, the 90th Precinct, or Patrol Bureau Brooklyn North located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

STATEMENT OF FACTS

11. On or about December 14, 2012, Angela Carr was the registered owner of a 2007 Lexus LS640, VIN # JTHBL46F775007073.

12. On December 14, 2012, Angela Carr's boyfriend Robert was driving her car, when he was arrested in Kings County, docket # 2012KN099233.

13. On or about December 14, 2012, members of the NYPD, including P.O. Marco Sikiric, Tax # 946251, seized the car as arrest evidence.

14. When Angela Carr learned of her boyfriend's arrest, she went to the '77th precinct and attempted to retrieve the car.

15. At the precinct she was told that the vehicle was taken as arrest evidence, and that she could not get it back without a release from the Kings County District Attorney's Office.

16. At the time she was not given a voucher for her car.

17. On or about December 15, 2012, the car was vouchered under voucher # 3000157511.

18. On June 18, 2013, Angela Carr was still the registered owner of a 2007 Lexus LS640 VIN # JTHBL46F775007073.
19. On June 18, 2013, the Kings County District Attorney's office authorized the release of the vehicle to Angela Carr.
20. The Kings County District Attorney's office no longer needed the car as arrest evidence.
21. On or about June 20, 2013, Angela Carr, received a release from the Kings County District Attorney's Office, for Voucher # 3000157511.
22. Angela Carr was told that the car was at the NYPD Springfield Gardens Auto Pound.
23. Angela Carr then called NYPD Springfield Gardens Auto Pound and was told that the vehicle was not there.
24. She soon learned that the vehicle was at Metropolitan Autobody and Towing, located at 160 2nd Avenue, Brooklyn, NY 11215.
25. Angela Carr confirmed that the car was at Metropolitan Autobody and Towing and was told that she would have to pay the towing and storage fees to get the car back.
26. On or about June 28, 2013, Angela Carr went to the 77th precinct and asked what happened to her car.
27. At the 77th precinct an officer told her that she signed for the vehicle on January 9, 2013, and that the vehicle was returned to her on January 9, 2013.
28. Angela Carr did not sign for the car on January 9, 2013, and the car was not released to her on January 9, 2013.
29. Upon information and belief, the defendants as part of a conspiracy fraudulently forged Angela Carr's signature to make it appear as if the car was released to her.
30. On July 2, 2013, Angela Carr paid the towing and storage fees and received the car.
31. When she got the car back, the car would not start and was not in running condition.
32. The interior of the car was significantly damaged.
33. All of her personal items were taken from the vehicle.
34. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.
35. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her rights.
36. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

37. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM (UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants unlawfully seized plaintiff's property without cause, a warrant, or consent.

40. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under [42 U.S.C. § 1983](#); and the Fourth and Fourteenth Amendments to the United States Constitution.

SECOND CLAIM (UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants unlawfully seized plaintiff's property without cause, a warrant, or consent.

43. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM

(TRESPASS TO PERSONAL PROPERTY)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants intentionally, improperly and unlawfully interfered with the plaintiff's possession of her property.

46. Accordingly, defendants are liable to plaintiff for trespass to personal property under New York State law.

FOURTH CLAIM (FAILURE TO INTERVENE)

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendant's had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

49. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM (NEGLIGENCE)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

SIXTH CLAIM

(NEGLIGENT SUPERVISION, HIRING, SUPERVISION, MONITORING, TRAINING, AND RETENTION OF UNFIT EMPLOYEES)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendant City of New York is liable to the plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the N.Y.P.D., its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said Defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its police officers.

SEVENTH CLAIM (MONELL CLAIM)

54. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendant City of New York, through a policy, practice, and custom, directly caused the constitutional violations suffered by plaintiff.

56. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

57. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

58. Further, 'Defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would falsify documents in order to cover up misconduct.

EIGHTH CLAIM (RESPONDEAT SUPERIOR)

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff.

61. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to [42 U.S.C. § 1988](#); and

d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York September 15, 2014

ADAMS & COMMISSIONG LLP,

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By:

MARTIN E. ADAMS, ESQ.

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